



REPRESENTATION OF THE PEOPLE (THIRD AMENDMENT) ORDINANCE, 2002

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REPRESENTATION OF THE PEOPLE (THIRD AMENDMENT)
ORDINANCE, 2002.
ORDINANCE XLV OF 2002

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ORDINANCE

further to amend the Representation of the People Act, 1976

WHEREAS it is expedient further to amend the Representation of the People Act, 1976 (LXXXV of 1976), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the 'Provisional Constitution Order' No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

1. Short title and commencement.-(1) This Ordinance may, be called the Representation of the People (Third Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Amendment of section 12, Act LXXXV of 1976. In the Representation on the People Act, 1976 (LXXXV of 1976), hereinafter referred to as the said Act, in section 12, in subsection (2), clause (b) shall be omitted.

3. Insertion of new section 20A, Act LXXXV of 1976. In the said Act, after section 20, the following new section shall be inserted, namely:-

"20A. Candidate to file certificate of party affiliation. Each contesting candidate, before seeking allotment of prescribed symbol, shall file a declaration before the Returning Officer about his party affiliation, if any, alongwith a certificate from the political party showing that he is a party candidate from the constituency."

4. Insertion of new section 82A, Act LXXXV of 1976. In the said Act, after section 82, the following new section shall be added, namely:-

"82A. Capturing of polling station and rolling booth, etc. Whoever-

- (a) seizes a polling station or a place fixed for the poll or makes polling authorities surrender the ballot papers or ballot box or both and doing of any other act which affects the orderly conduct of elections;
- (b) takes possession of a polling station or a place fixed for the poll and allow his supporters to exercise their right to vote and prevent other from free exercise of their right to vote;
- (c) coerces, intimidates or threatens directly or indirectly any elector and prevents him from going to the polling station or a place fixed for the poll to cast his vote; or
- (d) being in the service of Government or corporations or institutions controlled by the Government of all or any of the aforesaid activities or aids or connives at, any such activity in the furtherance of the prospects of the election of a candidate,

shall be guilty of an offence punishable with imprisonment for a term which shall not be less than three years and may extend to five years and with fine which shall not be less than fifty thousand rupees and may extend to one hundred thousand rupees or with both."

5. Amendment of section 86A, Act LXXXV of 1976. In Act, in section 86A; in clause (a), after the figure "80" the comma, and figures, ",section 82A" shall be inserted.

6. Amendment of section 94, Act LXXXV of 1976. In the said Act, in section 94, in sub-section (1), after figure "82" the word and figure "or section 82A" shall be inserted.
